

KMVTECH EDUCATION**INL1 · Module 8****Force, UN, disputes**

Lesson: Use of force and settlement

Student Lesson Notes

Study with the online lessons. Prefer primary sources (Constitution, statutes, treaties, cases). © KMVTECH Education · September 2026.

1. CORE IDEA

The UN Charter prohibits the threat or use of force against the territorial integrity or political independence of any State (Art. 2(4)). Exceptions: self-defence (Art. 51) and Security Council authorisation under Chapter VII.

Self-defence requires an armed attack (or imminent attack under some readings), necessity and proportionality. Collective self-defence and regional arrangements operate within Charter limits.

Peaceful settlement of disputes is obligatory (Art. 2(3), Chapter VI). Means include negotiation, mediation, inquiry, conciliation, arbitration and judicial settlement (ICJ).

- The African Union and EAC have their own dispute-settlement and peace-and-security architectures that interact with the UN system.

2. DETAILED RULES AND APPLICATION

Example: cross-border security operations must be justified under self-defence, invitation, or SC mandate; otherwise they risk engaging State responsibility.

Start with the prohibition; then test whether an exception is properly invoked and limited.

3. UGANDA / PRACTICE, METHOD AND TRAPS

Uganda's regional security engagements and contributions to peacekeeping illustrate the practical interface of Charter rules, AU decisions and bilateral arrangements.

Exam trap: treating humanitarian intervention or regime change as an open-ended exception to Art. 2(4) without Charter or custom support.

Method: (1) characterise the use of force, (2) test Art. 2(4), (3) examine self-defence or SC authority, (4) assess proportionality and reporting, (5) consider available peaceful means.

This module closes the classical public international law core and prepares for specialised regimes.

SELF-TEST QUESTIONS

Attempt these before the platform practice quiz.

1. What does Article 2(4) prohibit?
2. Name the two main exceptions to the use-of-force ban.
3. What conditions attach to self-defence?
4. List four peaceful means of settlement.
5. How does the AU system relate to the UN Charter?
6. Why is proportionality required in self-defence?

Exam tip: Prohibition first; exceptions are narrow and conditioned.

CHECKLIST BEFORE YOU LEAVE THIS LESSON

- I can state the main instrument(s) or Cap number.
- I can explain the core rule in my own words.
- I can apply the rule to a short Uganda / regional fact pattern.
- I know the common exam trap for this topic.
- I know how this lesson links to the next module.

Next step: Complete the online practice quiz for this lesson, then continue on the platform.